

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZHENIA MEDINA GUTIERREZ,

Petitioner

VS.

MARTIN JOEL QUIROZ IBANEZ,

Respondent

) Case Number: FDI-25-801424

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), VEHICLE AS
COMMUNITY PROPERTY; REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION
(PARENTING TIME), VEHICLE AS COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zhenia Medina Gutierrez (Mother) and Respondent Martin Joel Quiroz Ibanez (Father). They share one minor child named Bruno J. Quiroz Medina (12/07/16).
- 2) On April 20, 2026, Father filed a Request for Order seeking initial child custody and visitation orders and an order that the Court deny Petitioner's request that a 2016 Toyota Corolla be considered community property.
- 3) On June 8, 2026, the parties Father appeared at "Readiness" calendar, but Mother did not. The Court continued the matter to June 22, 2026 to allow Mother to appear in Court.
- 4) On June 22, 2026, the Court conducted its "Readiness" hearing. The Court referred the parties to FCS Mediation to occur on July 22, 2026 and set the matter for review hearing on August 11, 2026.
- 5) The Court notes that Mother has not served and filed a Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court DENIES (without prejudice) Respondent's request to declare the 2016 Toyota Corolla a separate property asset. This is an issue for trial. The Court will adjudicate this issue, at the time of the final trial in this matter.
- 3) The parties shall share Joint Legal and Joint Physical Custody of the minor child.
- 4) Father's parenting time shall be on the 1st, 3rd and 5th weekends of each month from Friday after school (if no school, 4:00 p.m.) through Monday morning drop of the child at school. Father to provide the transportation to and from his parenting time.
- 5) Father shall also have parenting time with the minor child every Wednesday from after school until 7:30 p.m. Father shall provide the transportation to and from his parenting time.
- 6) Mother shall have care and custody of the minor child during all other times.
- 7) The parties shall meet and confer to develop a Holiday schedule for their parenting time. If they are unable to do so, either of them may file a Request for Order seeking the Court's assistance in developing a Holiday schedule.
- 8) The Court will prepare the Findings and Order After Hearing.